

release is either under the sanction of a Court of Equity, or by virtue of a special power in the instrument creating the trust, [or of a statutory power (a)], or with the consent of all the parties interested in the estate and being *sui juris* (b).

Executor cannot renounce after he has acted. — Thus, where A. was named executor, and acted in behalf of some particular legatees, but disclaimed the intention of interfering generally, and then renounced, and B. obtained letters of administration *cum testamento annexo*, and possessed himself of assets, and died insolvent, it was held that A., having acted, could not afterwards discharge himself, and was responsible for the *devastavit* committed by B. (c).

[*252] * 2. **Moorcroft v. Dowding.** — Though a trustee may have given a bond for the due execution of the trust, and the *cestui que trust* may have recovered upon the bond, and been paid the money, yet, if the *cestui que trust* afterwards take proceedings to compel a conveyance of the trust estate, the trustee cannot divest himself of his fiduciary character by pleading that the penalty of the bond was a stated damage for the breach of trust, and that on payment of the penalty the trustee should be released. A conveyance, however, will not be decreed without an allowance to the trustee of the penalty recovered upon the bond, with the interest at the usual rate (a).

Secondly. The office of trustee, being one of personal confidence, cannot be *delegated*.¹

[(a) See 44 & 45 Vict. c. 41, ss. 31, 32.]

(b) See *Doyle v. Blake*, 2 Sch. & Lef. 245; *Chalmer v. Bradley*, 1 J. & W. 68; *Read v. Truelove*, Amb. 417; *Manson v. Baillie*, 2 Macq. H. L. Cas.

80. As to the discharge of the trustee, see Ch. XXV. *infra*.

(c) *Doyle v. Blake*, 2 Sch. & Lef. 231; see *Lowry v. Fulton*, 9 Sim. 123.

(a) *Moorcroft v. Dowding*, 2 P. W. 314.

¹ *Delegation of the trust.* — The powers and duties of a trustee cannot be delegated unless there are express directions to that effect in the trust; *Winthrop v. Attorney-General*, 128 Mass. 258; *Wilson v. Towle*, 36 N. H. 129; *Suarez v. Pumpelly*, 2 Sandf. Ch. 336. The settlor may make any provisions in reference to the trustees and their powers that he wishes; *Whelan v. Reilly*, 3 W. Va. 597; he may direct his trustee to name his successor; *Abbott*, Petr. 55 Me. 580; but his rights may be limited as against creditors; *Planck v. Schermerhorn*, 3 Barb. Ch. 644; should a trustee attempt to transfer his powers, he will be responsible to his *cestui que trust*; *Taylor v. Hop-*